IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION NO. (CAA) - 81(ND)/2023

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

M/s. SPR AGROTECH PRIVATE LIMITED

..... Applicant Company No.1/Transferor Company No. 1

AND

M/s. SUPERB POLY TECH COMPONENTS PRIVATE LIMITED

..... Applicant Company No.2/Transferor Company No. 2

AND

M/s. SKAEL ENTERPRISE PRIVATE LIMITED

..... Applicant Company No.3/Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Order Pronounced On: 24.11.2023

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Rishabh Sachdeva, Adv., Mr. Abhishek Nahta, PCA, Ms., Shruti Priya Sharma, Adv., Ms. Raveena Paniker, Ms. Shourya Nandwani, Advs.

For the Respondent :

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. This is a 1st Motion Petition jointly filed by the Applicant Companies seeking approval of this Tribunal about the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Applicant Companies. It is represented that the registered office address of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said petition falls within the jurisdiction of this Tribunal. Ld. Counsel has given the brief description of the Applicant Companies, which are as follows:

   a) Applicant Company No. 1 namely M/s. SPR Agrotech Private Limited bearing CIN: U70101DL2008PTC179983 was incorporated on 24.06.2008 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi & Haryana. The registered office of Applicant Company No. 1 is situated at G-112/15, Gali No. 15, KH No. 1/77, Ganga Vihar K-Nagar, New Delhi-110094. The Authorized Share Capital of the Company is Rs. 4,50,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 2,01,250/-.

   b) Applicant Company No. 2 namely M/s. Superb Poly Tech Components Private Limited bearing CIN: U25190DL2009PTC189170 was incorporated on 06.04.2009 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi & Haryana. The registered office of Applicant Company No. 2 is situated at 102 Thaper Arcade, 47 Kalusarai, New Delhi- 110016. The Authorized Share Capital of the Company is Rs. 50,00,000/- and issued, subscribed and paid- up share

capital of the Company is Rs. 15,52,500/-.

c) Applicant Company No. 3 namely M/s. Skael Enterprise Private Limited (formerly known as M/s. Skael Enterprise limited) bearing CIN: U74999DL2016PTC292050 was incorporated on 03.03.2016 under the provisions of the Companies Act, 2013 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, NCT of Delhi & Haryana. The Transferee Company was originally incorporated as Public Limited Company, later converted into a Private Limited Company on 25.03.2021 under the provisions of Companies Act, 2013. The registered office of the Transferee Company is situated at 210, S-524, Second Floor School Block, Shakarpur, New Delhi- 110092. The Authorized Share Capital of the Company is Rs. 2,43,00,000/- and issued, subscribed and paid- up share capital of the Company is Rs. 2,40,00,000/-.

2. The Affidavits in support of the present petition have been sworn by Mr. Anil Kumar, Director of Applicant Company No. 1, by Mr. Mahesh Kumar Pareek, Director of Applicant Company No. 2, and by Mr. Nikhil Bansal, Director of Applicant Company No. 3 who have been duly authorized vide board resolutions of all the Applicant Companies. All the Affidavits are filed along with the petition.

3. The Board of Directors of the Applicant No. 1/Transferor Company No. 1 as well as the Board of Directors of the ApplicantNo.2/Transferor Company No. 2 and the Board of Directors of the Applicant No.3/ Transferee Company in their separate meetings held on 01.09.2023 respectively have approved and adopted the Resolution to transfer and vest the Amalgamated Undertaking of the Applicant No. 1 Company/ Transferor Company No.1 and Applicant No. 2 Company/ Transferor Company No.2 into the Applicant No. 3/Transferee Company on a going concern basis in accordance with the terms of the Scheme of Amalgamation.

4. The Applicant Companies have filed its Memorandum and Articles of

Association inter alia delineating their object clauses as well as the latest audited annual financial report for the year ended 31.03.2022 and the copy of the unaudited provisional financial statements as on 31.03.2023 as required under section 232(2)(e) of the Companies Act, 2013.

5. The Applicant Companies have filed the true copy of the proposed Scheme of Amalgamation and have outlined the benefit of the same, which are as follows:

> *"a. Streamlining of the corporate structure and consolidation of assets and liabilities of the Transferor Companies within the Transferee Company;*
>
> *b. More efficient utilization of capital for enhanced development and growth of the consolidated business in one entity;*
>
> *c. The combined net worth of all companies will enable the merged entity to tap into new business opportunities thereby unlocking growth opportunities for the merged entity considering the financial strength of the Transferee Company post the amalgamation;*
>
> *d. More efficient utilization of capital for enhanced development and growth of the consolidated business in one entity;*
>
> *e. The merged entity will have the ability to leverage on its assets base, to enhance stakeholder's value;*
>
> *f. It would result in the consolidation of business activities and will facilitate effective management of investment and synergies in operations;*
>
> *g. Reduction in multiplicity of legal and regulatory compliances, reduction in overheads, including administrative, managerial and other costs amongst all; and*
>
> *h. Consolidation and simplification of the group structure and reduction of administrative costs at the group level."*

6. The Shares of the Transferor Companies and the Transferee Company have been evaluated for the purpose of determining the exchange ratio:

i."25 (Twenty -Five) equity share of INR 10/- (Indian Rupees Ten

only) each in the Transferee Company shall be allotted as fully paid up (new equity shares) for every 711 (Seven Hundred Eleven) equity share of INR 10/- (Indian Rupees ten only) each fully paid up held by the shareholders in the capital of Applicant Company No. 1.

ii. 200 (Two Hundred) equity share of INR 10/- (Indian Rupees Ten only) each in the Transferee Company shall be allotted as fully paid up (new equity shares) for every 301 (Three Hundred One) equity share of INR 10/- (Indian Rupees ten only) each fully paid up held by the shareholders in the capital of Applicant Company No. 2."

7. The Applicant Company No. 1 has 2 (Two) equity shareholders as on 31st August, 2023. The consent letters of all the Equity Shareholders along with the affidavit is filed along with the Petition. The Applicant Company No. 1 has NIL secured creditors as on 31st August, 2023. The Applicant Company No. 1 has 6 (Six) Unsecured creditors as on 31st August, 2023. All the Unsecured Creditor of the Applicant Company No.1 representing 100% in value have given their consent in writing in the form of an affidavit to the proposed Scheme of Amalgamation. The Consent Letters of all the Unsecured Creditor along with the affidavit along is filed along with the Petition.

8. The Applicant Company No. 2 has 20 (Twenty) equity shareholders as on 31st August, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No. 2 has NIL secured creditors as on 31st August, 2023. The Applicant Company No. 2 has NIL Unsecured creditors as on 31st August, 2023.

9. The Applicant Company No.3 has 6 (Six) equity shareholders as on 31st August, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No.3 has NIL secured creditors as on 31st August, 2023. The Applicant Company No. 3 has 3 (Three) Unsecured creditors as on 31st August, 2023. All the Unsecured Creditor of the Applicant Company No. 3 representing 100% in

value have given their consent in writing in the form of an affidavit to the proposed Scheme of Amalgamation. The Consent Letters of all the Unsecured Creditor along with the affidavit along is filed along with the Petition. The Table showing the details of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies are as follows:

	Name of the Company	No. of Shareholders	Consent Given	No. of Secured Creditors	Consent Given	No. of Unsecured Creditors	Consent Given
Transferor Company No. 1	SPR Agrotech Private Limited	2	2	0	NA	6	6
Transferor Company No. 2	Superb Poly Tech Components Private Limited	20	20	0	NA	0	NA
Transferee Company	SKAEL Enterprise Private Limited	6	6	0	NA	3	3

10. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the following prayers:

i. *"Dispense with the requirement of convening of separate meetings of the Equity Shareholders of the Transferor Companies and Transferee Company as all the equity shareholders of the Transferor Companies and Transferee Company have given their consent in writing on affidavits for the proposed Scheme of Amalgamation;*

ii. *Dispense with requirement of convening of separate meetings of the Secured Creditors of the Transferor Companies and Transferee Company as there are NIL Secured Creditors in the Transferor Companies and Transferee Company;*

iii. Dispense with requirement of convening the separate meetings of the Unsecured Creditors of the Transferor Company No. 1 as the Unsecured Creditor representing 100% or Total outstanding amount have given their consent in writing on affidavits for the proposed Scheme of Amalgamation;

iv. Dispense with requirement of convening the separate meetings of the Unsecured Creditors of the Transferor Company No. 2 as there as NIL Unsecured Creditors in Applicant Company No. 2;

v. Dispense with requirement of convening the separate meetings of Transferee Company as the Unsecured Creditor representing 100% of total outstanding amount have given their consent in writing on affidavits for the proposed Scheme of Amalgamation.

vi. Pass such other or further orders as this Hon'ble National Company Law Tribunal, New Delhi Bench may deem fit and proper in the facts and circumstances of the present case."

11. The prayer sought in the present petition bearing CA.CAA-81(ND)/2023 stands **allowed** on the aforesaid term and is accordingly **disposed of**.

12. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

13. Let copy of the order be served to all the parties.

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)